

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Application no. 844/06
by Vladimir MOSCALEV
against Moldova

The European Court of Human Rights (Fourth Section), sitting on 16 March 2010 as a Chamber composed of:

Nicolas Bratza, *President,*
Lech Garlicki,
Ljiljana Mijović,
David Thór Björgvinsson,
Ján Šikuta,
Päivi Hirvelä,
Mihai Poalelungi, *judges,*

and Lawrence Early, *Section Registrar*,

Having regard to the above application lodged on 8 December 2005,

Having regard to the declarations submitted by the respondent Government on 8 September 2009 and 2 December 2009 and the applicant's acceptance of their terms,

Having deliberated, decides as follows:

THE FACTS

The applicant, Mr Vladimir Moscalev, is a Moldovan national who was born in 1959 and lives in Chişinău. The Moldovan Government ("the Government") were represented by their Agent, Mr V. Grosu.

On 31 May 2005 the applicant was charged with being an active participant in an unauthorised demonstration. On 2 June 2005 the Buiucani District Court found the applicant guilty as charged and imposed on him an

administrative fine. By a final judgment of 15 June 2005 the Chişinău Court of Appeal dismissed the applicant's appeal without giving any reasons for its decision.

On 12 January 2009 the President of the Fourth Section of the Court decided to communicate to the Government the complaints raised under Articles 6 § 1 and 11 of the Convention.

By letter dated 8 September 2009 the Government informed the Court that they proposed to make a unilateral declaration with a view to resolving the issues raised by the application. They acknowledged a violation of the applicant's rights guaranteed by Article 6 of the Convention on account of the Chişinău Court of Appeal's failure to give any reasons for dismissing the applicant's appeal against the judgment by which he had been found guilty of an administrative offence. They also undertook to pay the applicant 1,500 euros (EUR) to cover any pecuniary and non-pecuniary damage as well as costs and expenses. The payment would be effected within a period of three months from the date of notification of the decision taken by the Court pursuant to Article 37 § 1 of the Convention. In the event of failure to pay within that period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period, plus three percentage points. They further requested the Court to strike out the application in accordance with Article 37 of the Convention.

By letter dated 2 December 2009 the Government submitted a further declaration. They acknowledged that there had been a violation of the applicant's right to freedom of assembly on account of his conviction for participation in an unauthorised demonstration.

On 18 December 2009 the applicant informed the Court that he had agreed to the terms of the Government's declarations and invited the Court to proceed with the examination of the Government's request and to strike the case out of its list of cases.

THE LAW

The Court considers that the applicant's express agreement to the terms of the declarations made by the Government can be considered as an implied friendly settlement between the parties.

It therefore takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and its Protocols and finds no reasons to justify a continued examination of the application (Article 37 § 1 *in fine* of the Convention).

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Lawrence Early
Registrar

Nicolas Bratza
President